



The Selectboard
TOWN OF WESTHAMPTON
TOWN HALL
1 SOUTH ROAD
WESTHAMPTON, MASSACHUSETTS 01027

Minutes of the Meeting - Westhampton Selectboard

Monday, April 25, 2022, at 7:00 PM

The Westhampton Selectboard scheduled a regular meeting on Monday, April 25, 2022, at 7:00 PM. Pursuant to Chapter 20 of the Acts of 2021, the meeting was held as a “hybrid” (in person and remote access) meeting. Some members of the board and the public attended the meeting via “Zoom” conferencing. Meeting ID Code: 8704 390 0582. In-person attendance by the public was permitted. The meeting was recorded for record-keeping purposes.

Call to Order

Call to Order – 7:03 PM

PRESENT IN PERSON: Phil Dowling, Maureen Dempsey, Bill Jablonski, Doug Finn.

PRESENT BY REMOTE: Teri Anderson; Mary Lou Provost, Susan Bronstein

Department and Committee Updates

Highway (Bill Jablonski)

Mr. Jablonski noted that the department had been working on cleanup around town buildings; roads have been swept; post-season maintenance on snow removal equipment; dirt road maintenance; dust control started.

Mr. Jablonski noted that Austin Norris had completed his probationary period on April 4, and has received all necessary licenses, and requested change of status effective April 4.

Ms. Anderson asked whether the request was consistent with policy. Mr. Jablonski noted that it was consistent with the MOU with Highway Employees.

It was MOVED by Dowling, SECONDED by Dempsey

To endorse the end of probation for Highway Employee Austin Norris, and to approve a pay rate increase from \$22.65 to \$26.51, retroactive to April 4, 2022.

VOTED: 3, 0, 0. (7:05 PM)

Mr. Finn will notify the Treasurer.

No other business will be presented.

Health (Robby Armenti)

Ms. Armenti noted that a new Health Inspector, Jan McNealy, has been hired and is starting work with the Foothills Health District.

Ms. Armenti noted three new cases of Covid-19, and that all were people who had been vaccinated and boosted.

Ms. Armenti noted that town officials were seeking training through the state, including Title V inspections, etc.

Ms. Armenti also notified the board of the “Opt Out” option for the state mosquito spraying program. Ms. Anderson noted the updated legal requirements associated with “opting out”, and asked whether the Board of Health could assist with meeting those requirements. Ms. Armenti noted that it would be on the agenda for Board of Health’s

meeting on May 7, and it would be prepared for May 9.

Mr. Finn will add consideration of the matter to the regular meeting of the Selectboard on May 9.

Public Safety Building (Phil Dowling)

Mr. Dowling noted that the building siding is going up, the roof is complete; interior masonry walls are being completed, and electrical and plumbing work at the site has begun. Excavation will begin for installation of tanks, and a site-work deadline is established. The retaining wall on the west (salt-shed) side is anticipated to start very soon.

Engagement with the architect continues in an effort to resolve differences.

MVP (Teri Anderson)

Ms. Anderson noted that the first Open Space Planning public meeting is complete; a draft plan should be ready by the end of the fiscal year. Diversity training for staff and board members will be going out within a few days. Time and space has been reserved for the public DEI workshops on 6/25 9:30am-12:30pm.

Other work is proceeding on schedule, with the exception for the student exhibition (“Cooler Communities” work), which has been postponed to Fall CY2022.

Old Business

“FINAL” REVIEW: Proposed FY2023 Budget

The board reviewed the budget as currently standing.

Mr. Dowling noted that outstanding concerns relate to how free cash will be used, and for what purposes.

There was some discussion regarding the cost and the timing of the purchase of the tractor / brush mower. The purchase is expected to be made in FY2023, is anticipated to cost no more than \$220,000, and is proposed to be paid for with free cash (no borrowing).

There was some discussion regarding the remaining debt for the 2021 Highway Truck / Public Safety Complex design. The amount outstanding is just under \$160,000, and is expected to be satisfied by an appropriation of free cash. Mr. Dowling noted the importance of making this appropriation; alternately, Town Meeting could appropriate only enough to pay off a second year of borrowing (about \$40,000).

There was discussion regarding an outstanding bill for technical school tuition – \$6,487, expected to be funded with free cash.

A proposal to backfill the Snow and Ice Budget is also on the Special Town Meeting warrant.

Other capital purchases, as proposed on the Annual Town Meeting warrant, were reviewed, including:

- Solid Waste Compactor (Transfer Station) (Req: \$39,000)
- Portable Compressor (Highway) (Req: \$20,000)
- Medium-duty four-wheel-drive truck (Highway) (Req: \$76,000)
- Light- or medium-duty four-wheel-drive truck (Police) (Req: \$65,000)
- dual-band radios (Police) (Req: \$7,500)

Mr. Dowling noted that some money would be proposed to be transferred to the General

Stabilization Fund, and some would be used to balance the budget and reduce tax rate. Both amounts were presented as draft amounts, and subject to change. Appropriation to Stabilization: \$150,000. Appropriation to reduce tax burden: \$80,000.

The reasons for moving free cash into stabilization were considered, including availability, specificity of use, and the potential to earn interest on stabilization funds.

The balance sheet was considered.

Mr. Dowling noted that he was satisfied with the budget as proposed.

Ms. Anderson noted that the Trash Compactor (proposed to be paid for with Free Cash) was expected to be paid for with ARPA funds. The board generally agreed, and removed the relevant warrant article. The proposed transfer to stabilization was increased by a corresponding amount.

The limits and restrictions on ARPA funds were reviewed.

Mr. Jablonski noted that the three larger capital items had been ordered, based on the availability of ARPA funding, and that if Town Meeting refuses the use of Free Cash, then ARPA funding will have to be used.

The circumstances leading to the appropriation of ARPA funds for the two vehicles was reviewed.

Mr. Dowling briefly discussed the potential need for additional funding to cover cost overruns for the public safety building, and the options to meet that need with ARPA funding. "There will be additional costs; we've spoken about reserving \$150,000 of ARPA funding; we're not sure if that's going to be enough." The possibility of an earmark on the state budget was noted, but that it was subject to debate at the state level. Mr. Dowling noted that the final fiscal cost of the public safety building was a moving target, and would not be completely realized until the building was mostly complete.

FINAL REVIEW: Town Meeting Warrant

The board reviewed the final draft versions of the Annual and Special Town Meeting warrants.

It was MOVED by Dowling, SECONDED by Dempsey

To approve the Special Town Meeting warrant as presented.

VOTED: 3, 0, 0. (8:00 PM)

Mr. Dowling expressed concern with the Annual Town Meeting as presented, noting that the draft warrant displayed a significant amount of information, more than in previous years.

The format was discussed; as was the manner of presentation of budget information, past practice related to same.

The board expressed its preference that the budget information be made publicly available separately from the Town Warrants, in order to keep the warrants clear and the warrant format clean.

Mr. Finn made adjustments to the warrant and the board reviewed the revised draft.

After final review, it was MOVED by Dowling, SECONDED by Dempsey

To approve the warrant for the Annual Town Meeting as revised.

VOTED: 3, 0, 0. (8:25 PM)

New Business

Elementary School Insulation and Heating System

Mr. Dowling described some history and details of the efforts to improve the insulation and heating systems at the elementary school. Mr. Dowling noted the following:

An insulation package to close in the soffits with spray-in insulation as proposed will cost \$10,450; however, an incentive from Eversource for \$7,315; Total cost will be just over \$3,000.

Pricing for heating system upgrades to heat-pumps is expected to cost about \$160,000; however, nearly half will be covered by an incentive from Eversource; total cost will be about \$85,000.

All expenses will be paid for through the Green Communities grant, at no final cost to the town.

It was MOVED by Dowling, SECONDED by Anderson

To approve the insulation proposal as presented, and authorize the use of up to \$3,135 in Green Communities funding for this purpose.

VOTED: 3, 0, 0. (8:30 PM)

Correspondence

Request for Release of Right of First Refusal

Mr Dowling noted that the Town had received a request to release a right of first refusal, but suggested no action be taken, noting that timelines favor the town, and that considering all options was in the town's best interest. No objection.

Cable Advisory Commission

The board considered a letter from the Mass Department of Telecommunications and Cable, noting that the Town should be proceeding with an ascertainment process in preparation for the renewal of the 10-year cable franchise contract.

Ms. Anderson asked if we have notified Comcast that we wish to proceed with an ascertainment process, and negotiations of the contract. Mr. Finn briefly described the process, noted that town's legal counsel could provide input in that regard, and he would seek such advice and direction.

After discussion, it was MOVED by Dowling, SECONED by Anderson

To proceed with ascertainment, and to authorize Mr. Finn to prepare necessary documents and notifications.

VOTED: 3, 0, 0. (8:38 PM)

Review / Approve Minutes – from April 11, 2022

The minutes from April 11, 2022, were reviewed. Two questions from Ms. Anderson were discussed and resolved.

After some revision, it was MOVED by Dowling, SECONDED by Dempsey

To approve the minutes as amended.

VOTED: 3, 0, 0. (8:42 PM)

Review of Payroll and A/P Warrants

The Payroll and Accounts Payable Warrants were reviewed.

It was MOVED by Dowling SECONDED by Dempsey
To approve the Payroll warrant as presented.

VOTED: 3, 0, 0. (8:45 PM)

It was MOVED by Dowling SECONDED by Dempsey
To approve the Accounts Payable warrant as presented.

VOTED: 3, 0, 0. (8:47 PM)

Other items not reasonably anticipated at time of posting

A letter of resignation was received from Duane Nichols. The board accepted his resignation with regret, and agreed to refer the letter to the Cemetery Commission for their review and guidance.

A letter from the Chief of Police was reviewed, in regard to disturbances off of Tob Hill road. A discussion was scheduled for the next meeting.

A letter from Pine Island Association was reviewed. Town's Counsel will be made aware of the matter, but no action is expected to be necessary.

Executive Session

No executive session was held.

Set date for Next Meeting

Mr. Dowling noted that the next regular meeting would be on Monday, May 9, 2022.

Adjourn

It was MOVED by Dowling, SECONDED by Dempsey **to adjourn.** WITHOUT OBJECTION. Adjourned at 8:55 PM.

Respectfully submitted,
Douglas C. Finn.

Approved by a vote of the Selectboard at a regular meeting, held on May 9, 2022.

Phil Dowling

Maureen Dempsey

Teri Anderson